Seasonal holiday rental agreement

General booking terms and conditions

La Maison Verte — Historic centre of Arreau

Between the following parties

The owner

Raphaël BENOIT

4 chemin du Calvaire - 65240 ARREAU

Telephone: 06 95 93 83 15

Email: contact@lamaisonverte65.fr

The guest / tenant

The guest's details are entered automatically when making the booking.

1. Purpose of the agreement

This agreement concerns the short-term holiday rental of the furnished accommodation known as La Maison Verte, in the historic centre of Arreau. The accommodation is let for temporary tourist use. The guest signing this fixed-term agreement may under no circumstances claim any right to remain in the premises after the stay has ended.

The accommodation has a floor area of 56 m² and includes an attic bedroom with two twin beds measuring 80 × 190 cm each.

2. Booking

The booking becomes effective once the owner has accepted the request, the required deposit has been paid (or the full amount where full payment is required or selected), and this agreement has been accepted. A booking confirmation is then automatically sent to the guest. The booking is made directly with the owner, without an intermediary or booking-platform commission. The rental agreed between the parties may not be used, even in part, for the benefit of third parties without the owner's written consent.

3. Payment

Deposit

Where payment is made in two instalments, a deposit equal to 30% of the accommodation price and, where applicable, the selected cleaning fee is payable at the time of booking. Tourist tax is excluded from the deposit calculation. Payment is made using a secure Stripe link. The link remains valid for 24 hours, during which the booking dates are blocked. After that deadline, the link expires and the dates become available again.

Remaining balance and tourist tax

The remaining balance is requested automatically 30 days before the arrival date by means of a secure Stripe payment link. Tourist tax, calculated separately in accordance with the rules applicable to the stay and the guests' circumstances, is collected in full with that balance. It remains itemised separately from the accommodation price and cleaning fee.

Full payment

If the guest chooses, or is required, to pay the full amount at the time of booking, that payment includes the accommodation price, any selected cleaning fee, and the applicable tourist tax, which is shown separately.

Failure to pay the balance

If the balance is not paid, automatic reminders are sent to the guest. Failure to pay the balance does not constitute cancellation of the booking and does not automatically release the dates. The balance remains payable. If the guest wishes to cancel the stay, they must notify La Maison Verte in accordance with the procedure in Article 4.

4. Cancellation terms

Cancellation by the guest

More than 30 days before the arrival date, all sums paid are refunded in full.

From 30 days before the arrival date onwards, the deposit is retained by the owner. If the remaining balance of the stay price has already been collected, it is refunded to the guest.

If the stay is shortened after it has begun, the rental price remains due to the owner and no refund may be claimed for unused nights.

Re-letting after cancellation

If cancellation occurs from 30 days before arrival onwards and some or all of the cancelled nights are subsequently re-let, La Maison Verte refunds the guest the portion of the retained deposit corresponding to the nights actually re-let. This additional refund is made after the stay concerned and cannot exceed the amount of the deposit initially retained.

Cancellation and refund procedure

Any cancellation request must be made directly to La Maison Verte by email or telephone. Cancellation is recorded after it has been processed by the owner, and a confirmation is sent to the guest by email.

When a refund is due under these terms, it is initiated through Stripe. An email informs the guest of the amount refunded. The time taken for the refund to appear in the guest's bank account then depends on their bank.

Tourist tax in the event of cancellation

If the stay does not take place, any tourist tax already collected is refunded to the guest. Tourist tax does not constitute a cancellation penalty and is not retained under the cancellation terms applying to the stay price.

Stripe fees and refunds

Where a full or partial refund is due to the guest under this agreement, any fees charged to the owner by Stripe are not deducted from the refund amount. La Maison Verte bears those fees.

Exceptional cancellation by the owner

In the event of exceptional cancellation by the owner for a reason attributable to the owner and not resulting from non-payment or a breach by the guest, all sums paid are refunded in full, including any tourist tax already collected.

5. Arrival and departure

The guest agrees to communicate their estimated arrival time. The specific arrival and departure times can be provided via a link in the booking confirmation email received. An automatic reminder is scheduled 48 hours before the arrival date. Check-in is from 4:00 p.m.; check-out is before 10:00 a.m. Depending on occupancy and the booking schedule, these times may be relaxed with the owner's prior agreement.

6. Use of the accommodation

The accommodation is let for the number of people specified when booking and can accommodate a maximum of four people. The guest agrees to respect the property, neighbours and equipment provided. Parties and noise disturbances incompatible with the neighbourhood are prohibited. Pets are not permitted.

7. End-of-stay cleaning

Cleaning package

An optional end-of-stay cleaning package is offered during booking. Its amount is the amount stated to and accepted by the guest at the time of booking. When selected, it is included in the stay price and forms part of the basis for calculating the deposit.

If the cleaning package is selected

The package covers normal end-of-stay cleaning. The guest must nevertheless use the accommodation normally and respectfully, put away the dishes and equipment used, and dispose of waste in the designated bins. The package does not cover damage, or manifestly abnormal dirt or situations requiring special intervention.

If the cleaning package is not selected

The guest agrees to leave the accommodation in a state of cleanliness comparable to that in which it was found on arrival. Before departure, the guest must in particular vacuum and, if necessary, wash the floors; clean the kitchen and equipment used; leave dishes clean and put away; clean the toilets and bathroom; empty the bins and dispose of waste in the designated containers.

Inspection after departure

After each departure, the owner or person responsible for preparing the accommodation always carries out an inspection and the work required between rentals, including preparing the linen and beds. This visit also makes it possible to check the cleaning carried out by a guest who did not select the package.

Cleaning not carried out or manifestly inadequate

If the guest did not select the cleaning package and the above obligations are not met, the cleaning package proposed for that booking may be charged to them. The applicable amount is the amount offered when the booking was made, even if the package price has subsequently changed.

8. Security deposit and damage

No security deposit is currently required. The guest remains responsible for any damage caused during the stay. If damage is attributable to the guest, the owner may request reimbursement for the corresponding loss. Any amount claimed must relate to documented damage and be justifiable in view of the necessary restoration, repair or replacement.

9. Insurance

The guest is responsible for all damage caused by them. They must be covered by civil liability insurance including a holiday rental / temporary accommodation guarantee covering the risks associated with a seasonal rental.

10. Electronic acceptance

When paying online, the guest must tick the following box: “I acknowledge that I have read and accepted the seasonal rental agreement and the general booking terms and conditions of La Maison Verte.” This electronic confirmation constitutes acceptance of the agreement and the general booking terms and conditions.

11. Personal data

The data collected is used solely for managing bookings and the customer relationship.

12. No statutory right of withdrawal

In accordance with Article L221-28 of the French Consumer Code, accommodation services supplied on a specific date or during a specified period are not subject to the statutory withdrawal period applicable to distance selling.

13. Disputes and applicable law

This agreement is governed by French law. In the event of a dispute, the parties shall first endeavour to reach an amicable solution. If no agreement is reached, they may in particular make free use of a judicial conciliator (conciliateur de justice). The dispute may then, if necessary, be brought before the court having jurisdiction in accordance with the applicable legal rules.

La Maison Verte - Arreau
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